



Questionnaire: Osmoflo – Guidera O'Connor

MN-35031

Deadline to respond: 17 August 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing Osmoflo Water Management Pty Ltd (**Osmoflo**)'s proposed acquisition of 100% of the shares in Guidera O'Connor Pty Ltd (**Guidera O'Connor**) (the **Acquisition**).

For further information about the ACCC's assessment of the Acquisition, see the ACCC's [Acquisitions Register](#).

The ACCC is assessing the impact of the Acquisition on competition and is seeking your views. The ACCC invites you to provide submissions or information in response to the questions below by **17 August 2026** via email to mergers@acc.gov.au with the title *Submission re: Osmoflo – Guidera O'Connor*. The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@acc.gov.au with the title *Request for call re: Osmoflo – Guidera O'Connor*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's [general confidentiality claims template](#)). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions

Questions for all respondents

1. Provide a brief description of your business or organisation, including any commercial relationships you have (or have had) with Osmoflo and/or Guidera O'Connor.

2. Who are the main suppliers involved in water and wastewater treatment projects in Australia? In your response, please identify the types of products or services they supply, and how these suppliers compare (e.g. in relation to price, product/service features, product/service quality).

3. Outline any concerns regarding the impact of the Acquisition on competition, including if Osmoflo and Guidera O'Connor are close competitors and there are not many alternatives or if one is a major supplier to competitors of the other.

4. Provide any additional information or comments that you consider relevant to the ACCC's assessment of the Acquisition.

Questions for suppliers

5. Explain whether an offering that linked Osmoflo's water and wastewater treatment systems and Guidera O'Connor's installation services would impact your ability to compete with the merged entity.

Questions for customers

6. Explain whether any water and wastewater treatment offerings from Osmoflo or Guidera O'Connor are particularly important.

7. Describe whether you currently purchase water and wastewater treatment systems as a package with installation services for those systems. Why or why not?

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's [confidentiality quick guide](#).